Republic of the Philippines
Province of Bukidnon
City of Malaybalay
New City Hall, Barangay Casisang. 8700
Tel (088) 813-4761-2

Contract No.: 2026-130

CONTRACT FOR

PURCHASE OF 1 UNIT WHEEL LOADER, CDRRMO, MALAYBALAY CITY

KNOW ALL MEN BY THESE PRESENTS:

This CONTRACT executed on the _____ day of _____ 2026 by and between:

CITY GOVERNMENT OF MALAYBALAY, a government agency of the Republic of the Philippines, hereinafter called **"the Entity"**;

-and-

MONARK EQUIPMENT CORPORATION a company duly organized and existing under the laws of **Quezon City**, with principal office at **13 Economia St. Bagumbayan, Quezon City**, hereinafter called **"the Supplier"**.

WHEREAS, the Entity invited Bids for certain goods, **PURCHASE OF 1 UNIT WHEEL LOADER, CDRRMO, MALAYBALAY CITY**;

WHEREAS, the Supplier submitted a responsive bid and was awarded the contract for the procurement in the total amount of **TEN MILLION SIX HUNDRED FIFTY THOUSAND PESOS ONLY (P 10,650,000.00)**, hereinafter referred to as the **"Contract Price."**

NOW, THEREFORE, for and in consideration of the foregoing premises, the parties hereby agree as follows:

1. Unless otherwise stated, terms and expressions used in this Contract shall have the same meanings as those assigned to them in the Conditions of Contract, which form an integral part of this Contract.
2. The following documents as required by the Implementing Rules and Regulations of Republic Act No. 12009 shall form part and be read and construed as integral parts of this Contract, *viz.*:

   a. Philippine Bidding Documents (PBD);

   • For Procurement of Goods

   i. Invitation to Bid;

   ii. Instruction to Bidders;

   iii. Bid Form, including all the documents/statements contained in the Bidder's bidding envelopes, as annexes, and all other documents submitted (e.g., Bidder's response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;

   iv. Bid Data Sheet;

   v. Schedule of Requirements;

   vi. Technical Specifications;

   vii. General and Special Conditions of Contract;

   viii. Supplemental Bid Bulletins, if any; and

   ix. Other contract documents that may be required by existing laws and/or the Entity.

Supplier Witness

REYNARD MORENO
Account Manager

BELLA STEPHANIE B. SAAVEDRA
City Treasurer Witness

JAY WARREN R. PABILLARAN
City Mayor

b. Winning bidder's bid, including the Eligibility Requirements, Technical and Financial Proposals, and all other documents or statements submitted;

c. Performance Security;

d. Notice of Award of Contract; and the Bidder's Conforme thereto; and

e. Other contract documents that may be required by existing laws and/or the Procuring Entity concerned in the PBD, such as but not limited to the Notice to Proceed and Warranty Security.

3. In consideration of the Contract Price of **TEN MILLION SIX HUNDRED FIFTY THOUSAND PESOS ONLY (P 10,650,000.00)**, or such other sums as may be determined in accordance with the terms of the Contract, the Supplier agrees to deliver and perform the items and related services for the **PURCHASE OF 1 UNIT WHEEL LOADER, CDRRMO, MALAYBALAY CITY** described herein in accordance with the terms and conditions specified in the Contract and its annexed documents.

Item No.	QTY	Unit	Description	Unit Cost	Amount
1	1	Unit	**WHEEL LOADER** **Brand/ Model: Caterpillar 950GC** **Specifications:** **Engine: Turbocharged Diesel Engine** **Rated Engine Horsepower: 243 hp @ designed rpm** **Rated Net Torque: 1092 N-m @ designed rpm** **Environmental Compliance: Tier IV emission standards** **Transmission: 4 forward & 3 reverse transmission** **Operating Specifications:** **Operating Weight: 18.849 metric tons** **Bucket Size: 3.2 Cu.m** **Breakout force: 154 kN** **Static Tipping Load Full turn (no tire deflection): ≥ 11,906 kg** **Dumping height at max lift & 45° discharge: ≥ 4,188 mm** **Ground clearance: 460 mm** **Operator Environment: Ladders with guardrails & handrails** **Fully air-conditioned enclosed cab** **Audio-entertainment system** **Mechanical suspension seats** **Safety Features: ROPS/FOPS certified cabin** **Seat belts** **Back-up alarm** **Adequate lighting system** **Inclusions: Standard tools with toolbox** **Grease gun** **Decals & Logos** **Operator's Manual (Hard and Soft Copy)** **Service & Maintenance Manual (Hard & Soft Copy)** **Parts Manual (Hard & Soft Copy)**	10,650,000.00	10,650,000.00

Supplier Witness

REYNARD MORENO
Account Manager

BELLA STEPHANIE B. SAAVEDRA
City Treasurer Witness

JAY WARREN R. PABILLARAN
City Mayor

			Other Conditions: Machine warranty for 3 years unlimited running hours for factory defects. Free preventive maintenance servicing up to 4000 hours with free filters, oils and oil sampling Free orientation and training for Operators and Maintenance Personnel Dealer must have an Exclusive distributorship/dealership of the equipment being offered by the manufacturing company and must submit proof of the same Must have a service center and parts warehouse and service support within Region X & XI After sales support team must be available 24/7 Dealers must provide a 1-year warranty for spare parts purchased as part of their after-sales support. Supplier must submit a notarized copy of the machine's waybill or bill of lading Unit must be equipped with Remote Management System or Telematics, and company must provide free access to the same Company must have a 24/7 Online parts store and online parts manual support system for the machine offered and provide free access		
******NOTHING AS FOLLOWS******					
TEN MILLION SIX HUNDRED FIFTY THOUSAND PESOS ONLY				**GRAND TOTAL**	**10,650,000.00**
Place of Delivery:		**NEW CITY HALL, BARANGAY CASISANG**		**Delivery Term:**	**30 C.D.**

In case of failure to make the full delivery within the time specified above, a penalty of one-tenth (1/10) of one percent for every day of delay shall be imposed.

4. The **CITY GOVERNMENT OF MALAYBALAY** agrees to pay the above-mentioned sum to the Supplier in accordance with the schedule and manner provided in the Bidding Documents and its annexes.
5. Any dispute, difference, or claim arising out of or relating to this Contract, including its existence, validity, interpretation, breach, or termination thereof, may be submitted to arbitration or other form of alternative dispute resolution in accordance with the applicable law, such as Republic Act No. 9285 (Alternative Dispute Resolution Act of 2004) or Executive Order No 1008, series 1985 (Construction Industry Arbitration Law).

Supplier Witness

REYNARD MORENO
Account Manager

BELLA STEPHANIE B. SAAVEDRA
City Treasurer Witness

JAY WARREN R. PABILLARAN
City Mayor

IN WITNESS WHEREOF, the parties hereto have caused this Contract to be executed in accordance with the laws of the Republic of the Philippines on the day and year first above written.

Head of the Procuring Entity or Duly Authorized Representative	Duly authorized to sign the Contract for and behalf of **MONARK EQUIPMENT CORPORATION**
JAY WARREN R. PABILLARAN	**REYNARD MORENO**
City Mayor	*Account Manager*
Date: _____	Date: _____

Supplier Witness

Signed in the presence of:

BELLA STEPHANIE B. SAAVEDRA	_____
City Treasurer	*Name and Signature*
Witness – Procuring Entity	*Witness– Supplier*

REYNARD MORENO
Account Manager

ACKNOWLEDGMENT

BEFORE ME, A Notary Public for and in the MANOLO FORTICH, BUKIDNON, City/Province of _____, this _____ day of _____, 2026, personally appeared the above-named persons who have satisfactorily proven to me their identity, through their identifying documents written below their names and signatures, that they are the same persons who executed and voluntarily signed the foregoing instrument consisting of **FOUR (4)** pages, including this page where this Acknowledgement is written, which they acknowledged before me as their free and voluntary act and deed.

BELLA STEPHANIE B. SAAVEDRA
City Treasurer Witness

WITNESS MY HAND AND SEAL this _____ day of _____, *2026*.

NAME OF NOTARY PUBLIC ATTY. JAY S. ALBARECE

Notarial Commission No. _____

Notary Public for _____ until _____

Roll of Attorneys No. _____

PTR No. _____

IBP No. _____

JAY WARREN R. PABILLARAN
City Mayor

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